religion like the Hindu *naamam* (*tilak*) on the forehead will stay unaffected—fair, just and kosher in law? Despite their seeming simplicity, the questions are dynamite in contemporary India. Union minister Giriraj Singh, whose Bhumihar *tilak* and *choti* are as unapologetically offered to the world as his words, said without a trace of irony that a Uniform Civil Code was "the need of the hour"—almost as if "uniform" was too tempting a cue. Next, Uttarakhand chief minister Pushkar Singh Dhami, also facing elections, promised such a code in his state if he returned to power. Answering a query from INDIA TODAY, RSS ideologue Seshadri Chari too iterated that "the Union government is duty-bound to enact a Uniform Civil Code. The Constitution has a provision for it in Article 44 as a Directive Principle".

The Law, Live

Proceedings in the Karnataka HC, attracting record viewership on livestreaming platforms, had taken a curious turn meanwhile—on two counts. The three-judge bench made as if to cool tempers with an interim order that called for status quo—unfairly in some eyes because it equated a religious symbol (hijab) with a political one (saffron shawls) and effectively prolonged the hijab ban (a petition against it failed in the Supreme Court; also, see *The Right to Be Visible*). Having an administrative temper is perhaps neither a court's remit nor its forte. Sure enough, the effect on the ground was near-tragic. As schools reopened on February 14, disturbing visuals of hundreds of hijab-clad girls being asked to leave their campus surfaced from a dozen districts—in Kodagu, a cohort of 43 girls in one go. Even small girls were not spared as hitherto peaceful schools overread the interim order; irate parents clashed with managements in Mandya, Chikkamagaluru, Tumakuru. Many places saw another aspect of shame: teachers and girl students being forced to take off their full burqa on the road, outside the gate, instead of inside one of the rooms, as was their wont. Muslim parents got trolled for putting *deen* before *duniya*—faith before the world—but the real victims were innocent children. The fear of large-scale Muslim dropouts is very real.

But before effecting this flawed status quo, the court also pivoted on an argument presented by the petitioners' lawyers to veer from the simpler questions at hand. Zeroing in on a vastly more complex subject, it framed the question thus: is the wearing of the hijab part of the essential practice of Islam? The exact wording contained the phrase "in the classroom" after "hijab"—lending it the highly specific focus the original incident called for—but no one could miss its potential to be detached from that context and read as a general proposition. Already, via a series of interconnected radials, the case touched all the vulnerable spots of the body politic: religion, identity, gender rights, community relations, electoral politics based around majority/minority conflicts, not to speak of the fundamental rights to various freedoms. A bit like a combustible Matryoshka doll of issues, except that each doll contains all others within it. Whichever way it goes, the Udupi case threatens to become a defining moment in India's constitutional, political, social and legal history—perhaps on the same scale as, and as fraught as, the Shah Bano case. At its centre is a mere headscarf, the hijab. That troubling enigma had changed its status in the case from victim to suspect.

Could a reflection of popular misgivings be read into this? Or did the petitioners' lawyers create an opening for this turn? After all, they cited two Kerala High Court judgments—of 2015-16 and 2018 (see *What Courts Have Said*)—to make the ostensibly persuasive claim that wearing the hijab was 'an essential part of Islam'. K.V. Dhananjay, a Supreme Court lawyer from Karnataka, feels they had erred tactically. Asserting that the case was moving into very troublesome territory, he wondered why the petitioners wanted a declaration that wearing the hijab is an essential part of Islam, knowing that it involves matters of such complexity? "This is novel territory for a court," he says. "True, other high courts have dealt with the issue, but in a very summary manner. This bench asked the petitioners' side—and it's a logical, legitimate question—whether *everything* in the Quran was an essential part of the practice of Islam. It's going in unpredictable directions." And tricky. After all, the Supreme Court's 1994 ruling that "mosque is not an essential part of the practice of Islam" had inflected even the Babri Masjid case. Staying on the fundamental rights may have been way safer. As it is, the fuzziness is there within doctrinal Islam itself. The Quran only asks for modesty—explicitly saying believing women must "not reveal their hidden adornments, except what normally appears / Let them draw their veils over their chests" (24:31). This can naturally be interpreted maximally or not (language itself can offer scope for that, see Zafarul-Islam Khan's column for his own translation).

The impugned action is not the wearing of the hijab, but the Feb. 5 govt order banning clothes that "disturb equality, integrity and public order"

Supreme Court lawyer Shahrukh Alam also feels the juridical pivot was unwarranted. The impugned action, according to her, was not the wearing of the hijab, but the "arbitrary action" of the college and the government order of February 5. It was "filling a vital gap" in the rules, the Advocate-General told the court, arguing for the state. The lawyers for the peti-